



United States
Attorney's Office
District of New Jersey



Florida Man Pleads Guilty to Health Care Fraud and Kickback Conspiracy

Thursday, December 18, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

NEWARK, N.J. – A Florida man pleaded guilty to conspiring to bill Medicare for medically unnecessary prescriptions, Senior Counsel Philip Lamparello announced.

Eric Van Vleet, 30, of Delray Beach, Florida, pleaded guilty to a superseding information charging him with conspiracy to commit health care fraud and conspiracy to violate the federal Anti-Kickback Statute, before U.S. District Judge Madeline Cox Arleo in Newark federal court.

According to documents filed in this case and statements made in court:

From February 2018 to September 2019, Van Vleet operated Hype Med LLC, which generated medically unnecessary prescriptions through a telemarketing and telemedicine scheme. As part of the health care fraud and kickback conspiracy, Van Vleet and Hype Med identified Medicare beneficiaries to target for expensive drugs. Call center employees contacted beneficiaries to pressure them to agree to try expensive medications, such as pain creams, scar creams, eczema creams, migraine medication, and a combination of prescription medications to be used as a “foot soak.” Van Vleet and Hype Med then sent recordings of calls with the beneficiaries, along with pre-marked prescription pads for particular drugs that would yield exorbitant reimbursements, to telemedicine companies. Hype Med paid the telemedicine companies kickbacks for every beneficiary referred for a prescription, and the telemedicine companies paid doctors to approve the prescriptions.

Van Vleet then directed the prescriptions to pharmacies, including Apogee Bio-Pharm LLC, located in Edison, New Jersey, with which Hype Med had a kickback arrangement. The pharmacies filled the prescriptions and sought reimbursement from federal health care benefit programs, including Medicare. The pharmacies, including Apogee, then paid a portion of each reimbursement to Hype Med as a kickback. Van Vleet and Hype Med received at least approximately \$343,683.69 in kickback payments from the owners of Apogee. The principals of Apogee—William Welwart, Ethan Welwart, and Gary Kaczka—are charged with health care fraud and related offenses in a separate indictment. Elan Yaish, former President of Apogee, previously pleaded guilty to an information charging conspiracy to violate

the federal anti-kickback statute. As a result of medically unnecessary prescriptions generated by Hype Med, Medicare paid at least \$1,399,812.52 based on false and fraudulent claims.

The health care fraud conspiracy charge carries a maximum potential penalty of 10 years in prison, and the charge of conspiracy to violate the Anti-Kickback Statute carries a maximum potential penalty of 5 years in prison. Each count is also punishable by a fine of \$250,000, or twice the gain or loss from the offense, whichever is greatest.

Senior Counsel Lamparello credited special agents of the FBI, under the direction of Special Agent in Charge Stefanie Roddy in Newark, U.S. Department of Health and Human Services Office of Inspector General, under the direction of Special Agent in Charge Naomi Gruchacz, and U.S. Department of Defense, Office of Inspector General, Defense Criminal Investigative Service, Northeast Field Office, under the direction of Special Agent in Charge Christopher M. Silvestro, with the investigation.

The government is represented by Assistant U.S. Attorney Katherine M. Romano, Chief of the General Crimes Unit in Newark.

###

Defense counsel: Michael Baldassare, Esq.

[van_vleet.information.pdf](#)

Updated December 18, 2025

Topic

HEALTHCARE FRAUD

Component

[USAO - New Jersey](#)

Press Release Number: 25-289

Related Content



PRESS RELEASE

Operations Manager of Wholesale Drug Distributor Sentenced to 30 Months in Prison for Role in Scheme to Buy Nearly \$50m of Prescription Medications Under False Pretenses and Resell Them for Profit

A North Jersey man was sentenced on July 29, 2026, to 30 months' imprisonment for conspiring with doctors and others to purchase nearly \$50 million worth of oncology and ophthalmology...

August 4, 2026

PRESS RELEASE

Founder And Former CEO of New Jersey Based Eye Care Group Charged with Health Care Fraud Conspiracy and Paying Illegal Kickbacks

Charges were brought today against the founder and former CEO of a New Jersey based management company that oversaw an optometry practice and eye surgery center for conspiring to commit...

July 29, 2026

PRESS RELEASE

Six Individuals, Including a Pharmacist and Doctor, Charged in Connection with \$20 Million Healthcare Fraud and Kickback Scheme

United States Attorney Robert Frazer announces criminal charges against 6 defendants in connection with an alleged scheme to defraud Medicare and Medicaid involving a doctor and other medical professionals issuing...

July 9, 2026



District of New Jersey

Main Office:

